

25VECV04171 25VECV04171

County: los-angeles

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Case Number: 25VECV04171 Hearing Date: September 23, 2026 Dept: NWI

25VECV04171 TERENCE SCHOSHINSKI v. SHELDON

F. SINGER

September 23, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Further Responses to Requests
for Production (Set One)

I.

Background

This is a malpractice action arising out of the attorney-client relationship between Plaintiff Terence Schoshinski ("Plaintiff") and Defendant Sheldon F. Singer ("Defendant"). On July 25, 2025, Plaintiff, in propria persona, filed the operative Complaint against Defendant, asserting causes of action for: (1) Legal Malpractice; (2) Breach of Fiduciary Duty; (3) Constructive Fraud; and (4) Intentional Misrepresentation.

On October 27, 2025, Defendant filed its Answer to the Complaint.

On August 13, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Production (Set One). On August 24, 2026, Defendant filed an Opposition and on September 9, 2026, Defendant filed an amended Opposition. On September 15, 2026,

Plaintiff filed a Reply.

II. Discussion

Meet and Confer

The Civil Discovery Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Specifically, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) “[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ and ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Here,

Plaintiff declares that on August 4, 2026, he sent Defendant’s counsel a written meet and confer letter concerning the discovery at issue in the instant motion. (Schoshinski Decl., ¶8, Ex. C.) Specifically, Plaintiff requested identification of the specific Bates numbers or Bates ranges responsive to each Request for Production by August 10, 2024, but Defendant refused to provide further verified responses and identification. (Id. at ¶¶8-10, Exs. C-D.) Plaintiff also requested an extension for filing a motion to compel in order to continue the meet and confer process, which Defendant did not agree to. (Id. at ¶11, Ex. E.)

Although the parties did not meet and confer in accord with the Code of Civil Procedure Sections 2016.040 and 2031.310, subdivision (b)(2), Plaintiff offered to meet and confer via telephone. Thus, the Court will exercise its discretion and rule on the merits below.

Motion to Compel Further Responses

“The party to whom a demand for

inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item” with a (1) statement of compliance, (2) a representation of inability to comply, or (3) objection. (Code of Civ. Proc., §2031.210, subd. (a).) “On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that...(1) [a] statement of compliance with the demand is incomplete[;] (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[;] (3) [a]n objection in the response is without merit or too general.” (Code of Civ. Proc., §2031.310, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified or supplemental response or before any specific later date to which the propounding and responding party have agreed in writing, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §2031.310, subd. (c).)

All motions or responses involving further discovery must contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, rule 3.1345, subd. (a)(2); Code of Civ. Proc., §2031.310, subd. (b)(3).)

Plaintiff moves for an order compelling Defendant to provide further responses to Plaintiff’s Requests for Production (Set One) Nos. 1 through 14, 16, and 17. Specifically, Plaintiff seeks an order requiring Defendant to identify the particular Bates-stamped documents or Bates-numbered range that are responsive to each inspection demand, rather than identifying the same undifferentiated production of SS000001 through SS000580 for each request. Given that Request No. 15 demands the entire client file, Plaintiff does not seek a further response or production as to Request No. 15. Plaintiff also seeks further code-compliant responses and production and monetary sanctions against Defendant and his attorneys for expenses incurred in connection with the Motion.

On May 15, 2026, Plaintiff propounded Requests for Production of Documents, Set One, on Defendant seeking documents related to Defendant’s representation of Plaintiff

in the underlying workers' compensation lawsuit. Defendant served verified responses on June 26, 2026 and produced approximately 580 Bates stamped pages. Defendant repeatedly referred to SS000001-SS000580 as the production responsive to materially different demands. Plaintiff attempted to resolve the dispute informally and asked Defendant to identify Bates numbers or ranges produced in response to each request. Defendant refused to comply and refused Plaintiff's request for an extension to permit additional discussion pertaining to this dispute.

Plaintiff

argues that good cause exists for the discovery sought because the demands concern Plaintiff's claims pertaining to Defendant's legal representation in the underlying workers' compensation action.

The

Court considers the Opposition filed on September 9, 2026. Defendant opposes the Motion for two reasons. First, Defendant argues that Plaintiff did not file the Motion within the 45-day deadline as required by Code of Civil Procedure section 2031.310, subdivision (c).

Defendant served his initial responses on June 26, 2026. As such, Plaintiff had until August 12, 2026 to file a motion to compel further responses because it would be within forty-five (45) calendar days plus two additional court days for electronic service. The present motion was not filed until August 13, 2026.

Second, Defendant has complied with his discovery obligations by producing all responsive documents, consisting of 580-Bates-stamped pages, and the Court should not grant Plaintiff's Motion on the basis of a formatting issue. Defendant argues that the production comprised the entire client file, the production was not evasive or incomplete, and any objections were meritorious. Moreover, Plaintiff's requests were broadly drafted, overlapping, in many instances vague and ambiguous, and seeking attorney work product and legal conclusions.

In his Reply, Plaintiff argues that the Court's own rejection notice establishes that this Motion and its supporting papers were received by the Court on August 12 at 9:48 p.m.; the sole stated rejection reason was that the PDFs were not text searchable. Plaintiff corrected the defect promptly, and the corrected package was received and accepted on August 13, 2026.

Pursuant to Los Angeles Superior Court

General Order in Re Mandatory Electronic Filing for Civil, “[n]otwithstanding any other provision of this order, if a digital document is not filed in due course because of: (1) an interruption in service; (2) a transmission error that is not the fault of the transmitter; (3) a processing failure that occurs after receipt, the Court may order, either on its own motion or by noticed motion submitted with a declaration for Court consideration, that the document be deemed filed and/or that the document’s filing date conform to the attempted transmission date.” (General Order, (d)(2)(B).)

Plaintiff’s Reply declaration

demonstrates that the present Motion and supporting papers were electronically transmitted through Journal Technologies on August 12, 2026 at 9:48 p.m. (Schoshinski Suppl. Decl., ¶3, Ex. A.) The filing was rejected pursuant to Section 6(a) of the First Amended General Order filed 5/3/19, given that electronic documents must be submitted in text searchable format. (Id. at ¶4.) Plaintiff received the notice of rejection on August 13, 2026 at 10:34 a.m. (Ibid.)

Upon receiving the rejection, Plaintiff immediately corrected the formatting issues and resubmitted the motion and supporting papers on August 13, 2026 at 12:25 p.m. and it was accepted. (Id., ¶5, Exs. B-C.) The Court grants Plaintiff’s request to conform the filing date of the instant Motion and supporting papers to the attempted transmission date of August 12, 2026. Thus, the Motion is timely.

As to the merits of the motion, the

Court finds that Defendant’s blanket identification of the entire production in response to each request is insufficient.

The governing statute does not merely require production of a collection containing responsive documents. It requires the documents or categories produced to be identified with the specific request number to which they respond. Specifically, Code of Civil Procedure section 2031.280, subdivision (a) requires that “[a]ny documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” Where requests are distinct, such as billing records, professional-liability insurance, materials regarding Dr. Roberts and diagnostic studies, or specific electronic communications, repeating the entire file range does not identify which

produced documents correspond to each individual request. Plaintiff also notes that he does not request a further response to Request No. 15, which seeks the complete client file, because the full range of documents serves as an appropriate response to the request. The Court agrees that for requests narrower than the entire file, Defendant must provide request-specific identification of the documents produced in response to each request.

Defendant argues that multiple requests improperly seek legal conclusions, mental impressions, or presuppose facts, and that requests using “reflecting” may intrude on attorney work product. Plaintiff responds that Evidence Code section 958 removes attorney-client privilege as to communications relevant to issues of breach in an attorney-client dispute, and that Code of Civil Procedure section 2018.080 removes work-product protection in actions between attorney and client to the extent relevant to breach; Plaintiff further contends section 2031.240 requires specificity if material is withheld.

Privilege or work-product objections do not excuse compliance with the identification requirement for produced documents. To the extent Defendant withholds material under a claim of privilege or protection, the Discovery Act requires objections to be stated with specificity. However, the Court does not make a ruling regarding any objections for privilege as these are not addressed in the Motion.

The Court grants Plaintiff’s Motion to the extent that it requests Defendant to serve further code-compliant verified responses to Requests for Production Nos. 1 through 14, 16, and 17, identifying the specific Bates-stamped documents or Bates-numbered range of documents in response to each individual request and serve a privilege log as required by CCP §2031.240(c)(1) and (2)..

Request for Discovery Sanctions

Code of Civil Procedure section 2031.310, subdivision (h), provides for the issuance of monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses to requests for production, unless the court finds the party who would be subject to sanctions acted with substantial justification or that other circumstances make sanctions unjust.

"A pro se

litigant cannot recover attorney's fees as a discovery sanction, but he can recover the 'reasonable expenses' he has 'incurred,' including photocopying, computer-assisted legal research, and other identifiable and allocable costs." (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1017.)

Plaintiff

requests sanctions in the amount of \$93.96 for court, electronic filing, and hearing-rescheduling charges, which consist of \$73.41 for filing the Motion and \$20.55 charged by the Journal Technologies to reschedule the hearing to September 23, 2026. (Schoshinski Suppl. Decl., ¶¶7-9, Ex. E.). Plaintiff's request for sanctions is granted.

Defendant also requests monetary

sanctions in the amount of \$4,030 against Plaintiff pursuant to Code of Civil Procedure section 2030.300 for bringing the instant Motion. Defendant's request for sanctions is denied.

III.

Conclusion

Accordingly, Plaintiff Terence

Schoshinski's Motion to Compel Further Responses to Requests for Production (Set One) is GRANTED. Defendant Sheldon F.

Singer is ordered to serve further code-compliant verified responses to Requests for Production Nos. 1 through 14, 16, and 17 that identify the specific Bates-stamped document or documents, or Bates-numbered range or ranges, responsive to each individual request and provide a privilege log within 20 days of this Order.

Plaintiff's request for sanctions is

GRANTED in the amount of \$93.96, to be paid by Defendant within 20 days of the Court's order.

Plaintiff Terence Schoshinski to give notice.